

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

12.SHAWNTEE FLEMING V. ANDRE FLEMING

22FL0216

Petitioner filed a Request for Order (RFO) on June 30, 2026, seeking a modification of permanent spousal support. Petitioner concurrently filed an Income and Expense Declaration. Respondent was personally served on July 27, 2026.

Respondent filed a Responsive Declaration and an Income and Expense Declaration on August 24, 2026. Both were served on August 21, 2026. Respondent opposes the request on the grounds that he was not properly served, Petitioner has failed to adequately set forth a significant change in circumstances, Petitioner is requesting guideline support, which is inappropriate post-judgment, and Petitioner's Income and Expense Declaration is incomplete.

The court drops the matter from calendar due to the lack of proper service.

All prior orders remain in full force and effect.

TENTATIVE RULING #12: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. SCOTT GAITHER JR V. JESSICA GEDDIS

PFL20210457

Respondent filed a Request for Order (RFO) on June 23, 2026, seeking child custody and parenting plan orders, as well as child support orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 31, 2026, and a review hearing on September 17, 2026. Proof of Service shows Petitioner was served with some of the required documents by mail. This is a post-judgment request for modification, and therefore, Family Code section 215 applies and Respondent was required to serve the documents personally or file an address verification form.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on August 10, 2026. It was mailed to the parties the same day.

Petitioner has not filed a Responsive Declaration or an Income and Expense Declaration.

The court finds good cause to proceed with the custody and parenting plan portion of the RFO only, as both parties fully participated in CCRC and reached full agreements. The court finds the agreements of the parties to be in the best interest of the minor. The court adopts the agreements as set forth in August 10th CCRC report.

The court drops the request to modify child support from calendar due to the failure to properly serve Petitioner.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CUSTODY AND PARENTING PLAN PORTION OF THE RFO ONLY, AS BOTH PARTIES FULLY PARTICIPATED IN CCRC AND REACHED FULL AGREEMENTS. THE COURT FINDS THE AGREEMENTS OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AS SET FORTH IN AUGUST 10TH CCRC REPORT.

THE COURT DROPS THE REQUEST TO MODIFY CHILD SUPPORT FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE PETITIONER.